IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST REPUBLIC OF SRI LANKA

In the matter of an Appeal made under Section 331 of the Code of Criminal Procedure Act No.15 of 1979 read with Article 138 of the Constitution of the Democratic Socialist Republic of Sri Lanka.

Court of Appeal Case No. CA/HCC/ 246/2018
High Court of Colombo Case No. HC/ 7524/2014

Wijesinghe Arachchige Jayasena

Accused-Appellant

Vs.

The Hon. Attorney General
Attorney General's Department
Colombo-12

Complainant-Respondent

BEFORE ; **P. Kumararatnam, J.**
R. P. Hettiarachchi, J.

COUNSEL : **Reienzie Arsecularatne, PC with Chamindri Arsecularatne, and Dilini de Silva for the Appellant.**
Wasantha Perera, DSG for the Respondent.

ARGUED ON : **03/02/2026**

DECIDED ON : **23/03/2026**

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JUDGMENT

P. Kumararatnam, J.

The above-named Accused-Appellant (hereinafter after referred to as the Appellant) was indicted by the Attorney General under Sections 54(A) (b) and 54(A) (d) of the Poisons, Opium and Dangerous Drugs Ordinance as amended by Act No. 13 of 1984 for Trafficking and Possession respectively of 37.76 grams of Heroin on 10th April 2013 in the High Court of Colombo.

After trial, the Appellant was found guilty on both counts, and the Learned High Court Judge of Colombo has imposed death sentence on both counts on 28.11.2018.

Being aggrieved by the aforesaid conviction and sentence, the Appellant preferred this appeal to this court.

The Learned Counsel for the Appellant informed this court that the Appellant has given consent to argue this matter in his absence. During the argument he was connected via the Zoom platform from prison.

On behalf of the Appellant the following Grounds of Appeal have been raised:

1. The Learned High Court Judge failed to consider the improbabilities/weaknesses of the prosecution's case in favour of the Appellant.
2. The learned High Court Judge has failed to consider that the prosecution has not proved the chain of production.
3. The learned High Court Judge has concluded that the evidence of PW1 and PW2 has established the case before considering the defence case.
4. Dock statement of the Appellant viewed against the prosecution case.
5. The learned High Court Judge considered the extraneous matters over the prosecution case.
6. The judgement was delayed for 2 years in violation of Section 203 of the Code of Criminal Procedure Act No.15 of 1979.

Background of the case.

PW1, PS 18307 Nandasena was attached to the Modara Police Station in the year 2013. On the day of the incident, he with PW2, PC 49466 Nimalsiri had been assigned duties at a checkpoint located on the left side of the bridge that connects Mattakkuliya and Elakanda, known as the Kadirana Bridge. When he left the police station at 13.45 hours, he had taken his pocket note book and a travel hand book along with him. Routinely, the said checkpoint was manned by two police officers and two officers attached to the Special Task Force. While on duty, he had noticed a person who was walking on the opposite side of the road in a suspicious manner. Having brought the said person to the checkpoint, a body search was done by PW1 and PW2, where a small parcel was found concealed inside his underwear. As the parcel contained some substance that was suspected to be Heroin, PW1 had arrested him, handcuffed and brought him to the Modara Police Station in a

three-wheeler. He had kept the parcel inside his trouser pocket until it was taken to the Police Narcotics Bureau, Colombo 01 for weighing.

On the first day, when he gave evidence, the court had noticed that he was not stable as he had a difficulty in giving evidence, and the case was postponed for 09.06.2016.

When the evidence resumed, PW1 had said that he commenced making notes prior to coming to the police station. The production weighed about 83.420 grams. After weighing it was sealed and handed over to the Reserve police officer under PR No. 171/2013.

PW2 was called to corroborate the evidence given by PW1. After leading all the police officers who handled the production when they were on reserve duty, the prosecution had closed their case. The defence was called, and the Appellant had made a dock statement and closed his case. The Appellant admitted the arrest but denied the recovery of any illegal substance from his possession on that date.

In every criminal case, the burden is on the prosecution to prove the case beyond reasonable doubt against the accused person. In a case of this nature, the prosecution will not only need to prove the case beyond reasonable doubt but must also ensure, with cogent evidence that the inward journey of the production has not been disturbed at all-material points.

In the case of **Mohamed Nimnaz V. Attorney General CA/95/94** held:

> *"A criminal case has to be proved beyond reasonable doubt. Although we take serious view in regard to offences relation to drugs, we are of the view that the prosecutor should not be given a second chance to fill the gaps of badly handled prosecutions where the identity of the good analysis for examination has to be proved beyond reasonable doubt. A prosecutor should take pains to ensure that the chain of events pertaining to the productions that had been taken charge from the Appellant from the time*

it was taken into custody to the time it reaches the Government Analyst and comes back to the court should be established".

Further in the case **of Mahasarukkalige Chandani v. Attorney General CA/213/2009 decided on 30/06/2016,** His Lordship Justice Malalgoda held that:

"As observed above, that Government Analyst Report which is the principal evidence in a drug offence entirely depends on the inward journey of the production chain and therefore, there is a duty cast on the prosecution to establish the inward journey of the production with reliable evidence".

In the first ground of Appeal, the Appellant contended that the Learned High Court Judge failed to consider the improbabilities/weaknesses of the case of prosecution case in favour of the Appellant.

In the assessment of the reliability of police records, the "test of probability" has to be applied. This is so, especially in situations where notes have been altered or there are discrepancies regarding the timeline of an arrest. It is of utmost importance to protect the rights of the accused as "uninformed legitimization of trivialities would make a mockery of administration of criminal justice".

In **CA/HCC/0039/2023** [Decided on 29.04.2025] this Court already held that:

"…Police officers' notes are frequently regarded as critical forms of evidence, particularly in criminal proceedings. Even minor alterations to these records can raise concerns regarding the credibility of the documentation and the intent. As a result, most law enforcement institutions implement stringent policies that regulate how and when officers may amend their notes. In absence of any plausible explanation, an alteration, if highlighted, definitely affects the integrity of the investigation conducted by the police. Therefore, disregarding the

highlighted time alteration has caused great prejudice to the Appellant…"

"…The burden of proof is usually on the person who brings a claim in a dispute. It is often associated with the Latin maxim semper necessitas probandi incumbit ei qui agit, a translation of which is: "the necessity of proof always lies with the person who lays charges." The learned defence Counsel brought to the notice of this Court that the officers engaged in the raid were later taken into custody on allegation of carrying Heroin. Hence, the allegation that there is a possibility that they had only produced a small quantity of Heroin and had concealed the rest. Law enforcement institutions are entrusted with a diverse set of rules and regulations that must be followed in order to maintain a high degree of integrity within police departments and to prevent oversights. Where this does not function well, law enforcement officers may become prone to careless behaviour and unlawful activities (Handbook on Police Accountability, Oversight and Integrity- Criminal Justice Handbook Series)"

Bradford Smith, Law Commission, WWW.smithlitigation.com 2014 states that:

"Good police note taking is important for two reasons. First, it invariably bolsters the credibility of the police officer giving evidence. Second, it promotes the proper administration of criminal justice by facilitating the proof of facts".

In the case of **Manu Sharma Manu Sharma v. State** (NCT of Delhi), (2010) 6 SCC 1 it was held:

"*What is the significance of requiring an investigating officer/officer in charge of a police station to maintain a diary? The purpose and the object seems to be quite clear that there should be fairness in investigation,*

transparency and a record should be maintained to ensure a proper investigation."

PW1 in his evidence stated that he left the Modara Police Station at 13.45 hours to go to the roadblock which is situated 2000 meters away from the police station. But he had come to the roadblock at 15.00 hours. The Learned President's Counsel contested that the time consumed, 01 hour and 15 minutes to reach the roadblock is not probable considering the distance in question.

According to PW1, he had not taken handcuffs when he went to the roadblock. But in his evidence, he had stated that he brought the Appellant to the Modara Police Station after handcuffing him.

Further, the Learned President's Counsel contended that PW1, although he claimed to have taken his pocket notebook and made notes in that book, he had made his notes in a half sheet and had made lots of corrections which had not been countersigned by the witness. Further, the notes made on the half sheet does not contain the time on which he entered his notes. He had failed to enter his notes in the police Information Book. Although, PW1 stated that he had started making notes at the roadblock itself, contradicting this position later, he had said that he made his notes at 20.10 hours at the police station.

According to PW1, he had left the Police Narcotics Bureau at 18.00 hours after weighing the production and had reached the Modara Police Station at 20.10 hours. Considering the distance between the Modara Police Station and the Police Narcotics Bureau, the learned President's Counsel argued that the time consumed to reach the Modara Police Station is unusual. This further aggravated that PW1 had failed to enter the Odometer meter reading of the vehicle in his notes.

The learned High Court Judge too had noticed discrepancies in the notes made by PW1. Further, the learned High Court had failed to mention that

PW1 had not made his notes in the Information Book, but in a blank sheet. The relevant portion is re-produced below:

Page 487 of the brief.

සිදු වූ සියල්ල දම්වැලක පුරුක් මෙන් පිළිවෙලට සටහන් කර තබන්නට පැ.සා. 01 නිළධාරියාට ඉඩක් නොලැබුණු බව පෙනී යන නමුත් විත්තිකරුගේ සන්තකයේ තිබී හෙරොයින් සොයා ගැනීම අසත්‍ය සිද්ධියක් නොවන බව සාක්ෂිවලට සවන්දෙන අවස්ථාවේ දී මා හට හැගුණි. එමෙන්ම කෙටි සටහනේ සහ දීර්ඝ සටහනේ සුලු අඩුපාඩුකම් නිරීක්ෂණය කිරීමට හැකි වූවත් ඇත්ත වශයෙන්ම ඒවා මෙම වැටලීම පොලිසිය විසින් ගොතන ලද නඩුවක ස්වභාවයකට පත් නොකරන බව පැහැදිලිවම පෙනී යයි.

In the second ground of appeal, the Learned President's Counsel for the Appellant argued that the prosecution has failed to establish the chain of production beyond reasonable doubt in this case.

In **Perera V. Attorney General** [**1998] 1 Sri.L.R 378** it was held:

> *"the most important journey is the inward journey because the final analyst report will depend on that".*

In **Witharana Doli Nona v.The Republic of Sri Lanka** CA/19/99 His Lordship Justice Abrew remarked thus;

> *"It is a recognized principle that in drug related cases the prosecution must prove the chain relating to the inward journey. The purpose of this principle is to establish that the productions have not been tampered with. Prosecution must prove that the productions taken from the accused Appellant was examined by the Government Analyst"*

Therefore, proving the chain of custody is a very important task for the prosecution. If investigating officers do not do their duty properly, the chain of custody can be successfully challenged at the trial. This is because the prosecution always relies on the evidence gathered by police officers in cases of this nature. The law enforcement merely finding drugs on an accused does not mean the accused can be convicted.

Under this ground, the President's Counsel strenuously argued that this is a fabricated case. Although, PW1 had handed over the Appellant to the reserve police officer at the Modara Police Station, PW1 had not taken any endeavour either to seal the production temporarily or to hand over the same to the reserve. Instead, he had kept the production in his custody until it was weighed at the Police Narcotics Bureau. I consider sealing or handing it over to the reserve to be very important, as the Appellant had taken the position that it was an introduction.

After the weighing of the production, it was handed over to the reserve police officer under PR No. 171/13. The prosecution had called PW5, PW6, PW7, PW8, PW9, PW10, PW11, PW12, and PW13 to prove the production chain.

According to PW1, after returning from the Police Narcotics Bureau, he had handed over to PW6 Lakmal under PR No. 171/13 on 10.04.2013 at 20.35 hours. On the same day he had handed over all productions including PR 171/13 to PW7 at 20.45 hours. Thereafter, on 11.04.2013, he had again assumed reserve at 5.22 hours from PW7. On the same day at 17.25 hours, he had handed over the reserve duty to PW7. Again on 12.04.2013 at 6.50 hours although he took back the reserve duty, he had not taken over PR.No.171/13. The relevant portion of the proceedings are re-produced below:

<u>Pages 321-323 of the brief.</u>

ප්‍ර : රෑ 8.45 භාර ගත්ත කාගේද සමන්නේ භාර ගත්තේ ?

උ : ඔව්.

ප්‍ර : සමන්ගේ සටහන් පෙන්වන්න භාර ගත්ත ? නැහැ නේද ?

උ : නැහැ ?

දැන් වේලාව : පෙරවරු 11.40 යි.

Under cross examination of PW7 Saman, it was confirmed that when he took over the reserve duty at 20.45 hours on 10.04.2013 there was no reference PR No.171/13 and when he handed over the reserve duty on 11.04.2013 to PW8 Dissanayake, he had not made a note in respect of PR No.171/13. The relevant portion of the proceeding are re-produced below:

<u>Pages 334-335 of the brief.</u>

ප්‍ර : දිසානායකට තමන් දීපු සටහන කෝ ?

උ : මම සටහනකින් භාර දීමක් සිදු කරලා නැහැ.

ප්‍ර : ඉස්සෙල්ලා හැම අවස්ථාවකම භාර දෙනකොට තමන් මට පෙන්නුවා භාර දෙන නිළධාරියා භාර ගත් නිළධාරියා බඩු ලැයිස්තුව ලිව්වට පස්සේ සටහනක් දානවා අහවලාට මම භාර දුන්නා කියලා. ඔබගෙන් මම ප්‍රශ්න කලාම ඔබ කිව්වා පැය 1/2 කට වඩා කල් ගියේ මොකද අරය භාර අරගන්න පැය 1/2 ක් විතර යනවා ඒ අනුව තමයි මගේ සටහන් පැය 1/2 ක් පරක්කු වුනේ කියලා ඔබ කිව්වා නේද ?

උ : එහෙමයි.

ප්‍ර : දැන් ඒ ආකාරයට පැය 1/2 ක් හරි, පැයක් හරි, දෙකක් හරි පරක්කු වෙලා තමුන් දාපු සටහනක් නැහැ නේද භාර දුන්නා කියලා ?

උ : එහෙමයි.

ප්‍ර : දිසානායක භාර ගත්ත වෙලාව කීයද ?

උ : 20.30 ට.

ප්‍ර : එසේ දිසානායකට තමන් භාර දුන්නා කියලා තමන්ගේ සටහනක් නැහැ නේද ?

උ : නැහැ.

The above re-produced portions of the evidence of PW6 and PW7 clearly shows a missing link after the Heroin was handed over to the reserve under PR No.171/13 by PW1.

Although, the Learned High Court Judge in judgment at pages 491-492 discussed the production chain at length, he had failed to address the missing link in the evidence of PW6 and PW7.

The chain of custody is the most important part of evidence in a drug related trial. The prosecution has the paramount duty to prove that it is the same production recovered at the time of detection. The main reason is to establish that the evidence, which is related to the alleged crime, was collected from the accused and was in its original condition, and that it was not tampered with or planted deceitfully to make someone else guilty. Handling of production evidence is a lengthy process, but the court necessitates it for the adjudication of the case. This proves the integrity of production which had been recovered, until it reaches the Government Analyst Department.

The defence can challenge the chain of custody evidence by questioning whether the evidence presented at trial is the same evidence as what was collected from an accused person. If there is any discrepancy in the chain of custody of a production and the prosecution is unable to prove who had the custody of production until it reached the analyst, the chain of custody stands broken.

The Appellant takes up the position that the amount of Heroin which had been mentioned in the indictment was not recovered from him. But he admits that he was arrested on the date mentioned in the indictment.

Considering the evidence highlighted above of PW6, and PW7, there is a missing link from the very inception of handing over the production to the reserve police officer, which had not been explained by the prosecution. Without a proper chain of custody, drugs do not come in as evidence. The discrepancies highlighted above cannot be ignored lightly, as the entire case rests on cogent and unambiguous evidence pertaining to the chain of production.

Although there is a missing link in the production from the very inception of the investigation, the Learned High Court Judge in his judgment stated that the production chain was not broken until it reached the Government Analyst Department. The relevant portion is re-produced below:

Page 490 of the brief.

ඒ අනුව නඩුභාණ්ඩ දාමය අඩුපාඩුවක් නොමැතිව සම්පූර්ණ කර ඇති බව මා නිරීක්ෂණය කරමි.

In this case, the prosecution has failed to establish the custody of the production chain beyond reasonable doubt. As this is a substantial fact, this ground alone is sufficient to vitiate the conviction in this case.

Even though this case is sent for re-trial, the prosecution will not be able to rectify the breaking of the chain of custody.

In **Asrappulige Neel Rohan Gomes v. The Attorney General CA/276/2007** decided on 03/04/2013, the court held that:

> *"…. But the court cannot use its discretion in the interest of justice in this case. In the event this case is sent back for fresh trial, the court is encouraging slackness on the part of the investigation and the prosecution. The court is not only allowing the prosecution to fill gaps in the prosecution case it is also encouraging the investigators to do now and what he should have done at the time of the investigation. It is a bad precedent, and unfair by the accused".*

In the case of ***Rathnayake v Attorney General*** (2004) 2 Sri L.R. 193 it was held:

> ***"****Ordering a re-trial against the accused-appellant who had been under the strain of a criminal charge poised over his head for such a long period of time -1 5 years - would be resulting in causing irremediably detrimental consequences and disorganisation to his family"*

As the appeal grounds 3,4 and 5 are interconnected, all will be considered together hereinafter.

Considering the above-mentioned appeal grounds, the Learned High Court Judge had considered both the prosecution and the defence evidence to come to his conclusion. Further, the Learned High Court had considered the dock evidence in his judgment. Hence, I conclude that these three grounds have no merit.

However, the Learned High Court Judge had misdirected himself on the facts of the case by holding that there was a war in the country on 10.04.2013, without any such evidence. Further, it was held that there was a bomb scare with a fear of terrorist attacks, and considering such a background, that such shortcomings of the prosecution's case in relating to the maintenance of the investigation books/notes can be overlooked.

In the final ground of appeal, the learned President's Counsel contended that the judgment was pronounced after two years of the closure of the case. No reasons were adduced by the learned High Court Judge.

Section 203 of the Code of Criminal Procedure Act No. 15 of 1979 in Sri Lanka, as amended in 2024, requires a High Court judge to record a verdict of acquittal or conviction within ten days of concluding a trial. If convicted, the judge passes the sentence, taking into account the time already spent in custody.

Whether the provision referred to above would be mandatory or not was considered in the case of

Anura Shantha V. Attorney General 1999 (1) Sri LR 299 and held that:

> *"the provisions of section 203 of the Code of Criminal Procedure Act are directory and not mandatory. This is a procedural objection that has been imposed upon court and its non-compliance would not affect the individual rights unless such non-compliance occasions a failure of justice."*

A delay in judgment would not automatically result in the convicting being void. Rather, it must be ascertained whether the delay caused a failure of justice or whether it prejudiced the substantial rights of the accused.

In this situation, a two-year delay is significant. If it can be demonstrated that the judge had failed to properly evaluate the evidence presented due to lapse of memory over that time period, or if it can be shown that the verdict was not actually prepared within such stipulated time, it can be treated as a serious illegality and a violation of the right to a fair trial.

Considering the 1st ,2nd and 3rd appeal grounds and due to the aforesaid reasons, I set aside the conviction and the sentence dated 28/11/2018 imposed on the Appellant by the Learned High Court Judge of Colombo. Therefore, I acquit him from both charges.

Accordingly, the appeal is allowed.

The Registrar of this Court is directed to send this judgment to the High Court of Colombo along with the original case record.

JUDGE OF THE COURT OF APPEAL

R. P. Hettiarachchi, J.

I agree.

JUDGE OF THE COURT OF APPEAL